

24STCV21989 24STCV21989

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-27
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Case Number: 24STCV21989 Hearing Date: August 27, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JOSE ARMENTA,

Plaintiff,

vs.

SONIC INDUSTRIES, INC., et al.,

Defendants.

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CASE NO.: 24STCV21989

[TENTATIVE] ORDER DENYING MOTION TO COMPEL
DEPOSITION

Dept. 506

8:30 a.m.

August 27, 2026

On August 28, 2024, Plaintiff
Jose Armenta filed this action against Defendant Sonic Industries, Inc.

On
July 24, 2026, Plaintiff filed a motion to compel the deposition of Patrick Boyan,
Defendant's Plant Manager.

If
a party to the action fails to appear for examination without making a proper objection,
the party noticing the deposition may move to compel the deponent's attendance and
testimony. (Code Civ. Proc., § 20205.450,
subd. (a).)

Since
May 16, 2025, Plaintiff's counsel requested deposition dates for Patrick Boyan. Each time Plaintiff noticed a deposition,
Defendant's
counsel asked to reschedule, and Plaintiff obliged. This continued through Plaintiff's Fifth Amended
Notice of Deposition of Patrick Boyan, scheduled for July 6, 2026 and served on
June 4, 2026.

The

Court is guessing that Plaintiff's counsel subscribes to the common belief that depositions cannot be noticed until after a date is agreed on by the parties and that to do otherwise is to improperly "unilaterally" set the deposition. It is not improper to unilaterally pick a date.

Patrick

Boyan did not fail to appear for a noticed deposition that remained on calendar. Even if the motion were not mooted by his August

10, 2026 deposition, there would be nothing to compel.

Accordingly,

the motion (including request for sanctions) is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 27th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court